Temporary
4162

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY UPON THE NEW YORK STOCK EXCHANGE.

By virtue of the authority vested in me by an Act of Congress entitled "An Act to define, regulate and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendments to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919 and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, and all other amendments thereto, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is authorized to sell at $113.50 per share (without the dividend payable to stockholders March 1, 1925, of record February 19, 1925) to W. A. Harriman & Company Inc. and Blair and Company. Inc. through the Irving Bank-Columbia Trust Company, New York City, without public or other advertisement, one thousand, six hundred fifty-five shares of the common stock of the New Orleans Texas and Mexico Railway Company, a corporation organized under the laws of the State of Louisiana, of the par value of one hundred dollars ($100.00) per share, which said shares were heretofore required to be conveyed, transferred, assigned and delivered to the Alien Property Custodian as the property of Lazard Speyer-Ellissen under the provisions of the said "Trading with the Enemy Act".

My reasons for the foregoing determination and order are:—

First: That more than fifty-one percent (51%) of the common stock of the New Orleans, Texas and Mexico Railway Company has been acquired by the Missouri Pacific Railroad Company, and that the acquisition by the Missouri Pacific Railroad Company of control of the New Orleans, Texas and Mexico Railway Company by the said purchase of stock makes it desirable to dispose of stock of the latter Company.

Second: That the offer extended by the Missouri Pacific Railroad Company to stockholders of the New Orleans, Texas and Mexico Railway Company for the remaining portion of the outstanding stock, if accepted, would result in the realization of a lesser amount of cash than would be realized by the outright sale of the stock at the present offer.

Third: That the sale of this stock on the New York Stock Exchange at the present quotation, or a sale at auction, would involve unnecessary expense, and would result in the realization of a sum less than that realized by sale at the price authorized in this Order.

CALVIN COOLIDGE

THE WHITE HOUSE,
February 24, 1925.

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GOVERNMENT PRINTING OFFICE